

IN THE COURT OF COMMON PLEAS
OF KNOX COUNTY, OHIO

- - - - -

State of Ohio ex rel.,	:	
Dave Yost, Ohio	:	
Attorney General,	:	
Plaintiff,	:	
vs.	:	Case No. 20IN06-149
	:	Judge James Kimbler
The Landings Property	:	
Owners Association,	:	
Inc., et al.,	:	
Defendants.	:	

- - - - -

DEPOSITION OF CLOYD A. YOUGH

- - - - -

Taken at Mount Vernon Police Department
5 North Gay Street, Fl. 1
Mount Vernon, OH 43050
October 23, 2023, 9:55 a.m.

- - - - -

Spectrum Reporting LLC
400 South Fifth Street, Ste. 201
Columbus, Ohio 43215
614-444-1000 or 800-635-9071
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Monday Morning Session

October 23, 2023, 9:55 a.m.

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S T I P U L A T I O N S

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It is stipulated by counsel in attendance that the deposition of Cloyd A. Yough, a witness herein, called by the Plaintiff for cross-examination, may be taken at this time by the notary pursuant to notice; that said deposition may be reduced to writing in stenotypy by the notary, whose notes may thereafter be transcribed out of the presence of the witness; that proof of the official character and qualification of the notary is waived.

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22	(Exhibits returned to Mr. Kravitz.)	
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1 responses, because nods are things that are hard
2 for the court reporter to get down.
3 At any time, if you feel you need to
4 take a break during the deposition, you can just
5 ask to take a break. I just ask that you answer
6 any question that's pending. Otherwise, if you
7 need to take a break at any time, just let us
8 know.
9 And then I wanted to make sure, just as
10 a precaution here, that you're not taking any
11 medication that would impact your testimony here
12 today?
13 A. I don't think so.
14 Q. Okay.
15 A. I'm taking medication.
16 Q. Yes, yes. I meant medication that
17 would impact your ability to think clearly --
18 A. Right.
19 Q. -- to give accurate testimony.
20 A. Correct.
21 Q. Okay. So your answer is no, right?
22 A. No.
23 Q. Okay. And have you ever had your
24 deposition taken before?

1 CLOYD A. YOUGH
2 being first duly sworn, testifies and says as
3 follows:
4 CROSS-EXAMINATION
5 BY MR. KRAVITZ:
6 Q. Good morning, Mr. Yough. Thank you for
7 coming in today. My name is Brett Kravitz. I am
8 an assistant attorney general with the State of
9 Ohio. I will be asking you questions here today
10 for this deposition, and I want to go over a few
11 ground rules for the deposition.
12 When I ask a question, I'm going to
13 assume that you understand the question unless you
14 tell me otherwise; and if you don't understand it,
15 I can rephrase the question and ask it in a way
16 that you can understand it.
17 I would also ask that we only talk one
18 at a time so that the court reporter can get all
19 of the information down from this deposition. If
20 we're both talking at the same time, it will be
21 difficult for her to get the transcript correct.
22 And then I also ask that you give all
23 verbal responses so that the court reporter can
24 get everything down in terms of your verbal

1 A. No.
2 Q. No. Have you ever testified at trial?
3 A. No.
4 Q. Okay. Where do you currently live?
5 A. I live at 50 Wildwood Lane, Mount
6 Vernon, Ohio 43050.
7 Q. And how long have you lived there?
8 A. I think since 2007.
9 Q. And is that located in Phase VII of The
10 Landings?
11 A. I believe, yes.
12 Q. Okay. Have you ever owned any other
13 property in the -- in any of the phases of The
14 Landings?
15 A. No.
16 Q. Okay. And the -- and 50 Wildwood Lane
17 is owned by Yough Preservation Trust at the
18 current time?
19 A. I didn't understand.
20 Q. Okay. You mentioned you lived at 50
21 Wildwood Lane. Who owns 50 Wildwood Lane?
22 A. It's in a trust.
23 Q. Okay. And that's the Yough
24 Preservation Trust?

Page 10 1 A. Correct. 2 Q. Okay. And just for background 3 purposes, we'll go ahead and mark this one as an 4 exhibit. 5 ----- 6 Thereupon, State's Exhibit 9 is marked for 7 purposes of identification. 8 ----- 9 Q. Mr. Yough, I've handed you Exhibit -- 10 what's been marked as Exhibit 9. 11 A. Right. 12 Q. And Exhibit 9 is the warranty deed for 13 50 Wildwood Lane, and it shows that it is a 14 warranty deed to Laurie Ann Kirkpatrick, trustee, 15 her successors as trustees of the Yough 16 Preservation Trust. So is this the trust that 17 you're talking about that owns -- 18 A. Correct. Yes. 19 Q. Okay. And does this appear to be a 20 true and accurate copy of the deed? 21 A. It looks accurate. 22 Q. All right. And this property, for 50 23 Wildwood Lane, was originally purchased by -- 24 through a trust in 2006; is that correct?	Page 12 1 give it back in a minute -- and see where you 2 circled. 3 Okay. I'll give that back. 4 So, Mr. Yough, you've circled a 50 in 5 The Landing Phase VII on this map, right? 6 A. Correct. 7 Q. Okay. 8 A. Yes. 9 Q. All right. 10 All right. I'm going to talk about The 11 Landings Property Owner Association, Inc. So I 12 want to talk kind of about their history. Are you 13 familiar with The Landings Property Association, 14 Inc.? 15 MR. CHAPPELEAR: Excuse me. You just 16 said two different words. 17 MR. KRAVITZ: Landings Property Owner 18 Association, Inc. 19 MR. CHAPPELEAR: That's different from 20 what you said in your question. 21 Do you understand the question? 22 THE WITNESS: I don't know. 23 A. What was -- The Landings what? 24 Q. Landings Property Owner Associations,
Page 11 1 A. Correct. 2 Q. Okay. 3 A. Yes. 4 Q. Okay. I'm going to mark this next 5 exhibit here as State's Exhibit 10. 6 ----- 7 Thereupon, State's Exhibit 10 is marked 8 for purposes of identification. 9 ----- 10 MR. KRAVITZ: I don't have as many 11 copies of this one. 12 Q. I'm handing you what's been marked as 13 State's Exhibit No. 10. I will represent to you 14 this is an engineering map that was prepared by 15 someone for the City from 2019. It's a Landings 16 subdivision map. And the only thing I want you to 17 do with this map is, if you could circle where 18 your property is located. 19 MR. CHAPPELEAR: Excuse me. Do you 20 have a copy for me? 21 MR. BALL: There you go. 22 MR. CHAPPELEAR: Thank you. 23 A. Do you want that back? 24 Q. Let me just take a look at it -- I'll	Page 13 1 Inc., are you familiar with that? 2 MR. CHAPPELEAR: That's a different -- 3 now you've used two different words. 4 MR. KRAVITZ: All right. Well, let's 5 just look at the articles of incorporation so 6 maybe we can be very clear. 7 All right. What are we on? 11? 8 MR. PORTER: Yes. 9 ----- 10 Thereupon, State's Exhibit 11 is marked 11 for purposes of identification. 12 ----- 13 Q. All right. I've handed you State's 14 Exhibit 10. Did you have a chance to look at that 15 document? 16 A. Yeah. 17 MR. CHAPPELEAR: Excuse me. I believe 18 this is Exhibit 11. 19 MR. WAMBAUGH: It is. 20 MR. KRAVITZ: Exhibit 11, all right. 21 Q. State's Exhibit No. 11 -- State's 22 Exhibit No. 11 is the articles of incorporation 23 for The Landings Property Owners Association, 24 Inc.; is that correct?

Page 14 1 A. That's what I have here, I think, yeah. 2 Q. Okay. Do you know what this entity is? 3 A. I'm sorry? 4 Q. Do you know what this entity is? 5 A. No. 6 Q. No. Were you ever a trustee of The 7 Landings Property Owners Association, Inc.? 8 A. No. 9 Q. Were you ever an officer? 10 A. No. 11 Q. Did you ever have any involvement 12 whatsoever with The Landings Property Owners 13 Association, Inc.? 14 A. No. 15 Q. Were you ever -- prior to this 16 deposition, were you ever aware of this entity? 17 A. I think I've seen it in some written 18 documents, but not really. 19 Q. Okay. 20 A. I've never seen it in this form. 21 Q. And on page 2 of Exhibit 11 -- 22 A. Yes, sir. 23 Q. -- it states the purpose for which the 24 corporation is formed, and it says: To hold,	Page 16 1 All right. What are we on? 2 MR. WAMBAUGH: 12. 3 ----- 4 Thereupon, State's Exhibit 12 is marked 5 for purposes of identification. 6 ----- 7 Q. All right. I've handed you Exhibit 12. 8 It is a quitclaim deed from Mullins Bros., Ltd., 9 to The Landings Property Owners Association, Inc. 10 Have you ever seen this document 11 before? 12 A. No. 13 Q. Okay. Were you ever aware that there 14 was a deed from Mullins Bros., to The Landings 15 Property Owners Association transferring a parcel 16 of 6609675162? 17 A. I don't remember. 18 Q. Okay. And do you remember a deed going 19 from Mullins Bros., Ltd., to The Landings Property 20 Owner Association, Inc., for any property near the 21 Knox Cattle Dam? 22 A. I don't remember that. 23 MR. KRAVITZ: Are we on 13, Joe? 24 MR. WAMBAUGH: Correct.
Page 15 1 maintain, and control the common properties of The 2 Landings Phase VII and Phase VIII. 3 MR. CHAPPELEAR: Excuse me. That 4 misstates the evidence. 5 Q. Does it say that? 6 MR. CHAPPELEAR: It doesn't say that. 7 MR. KRAVITZ: I'm going -- can you let 8 the witness answer the question? I just read 9 exactly what it says. 10 MR. CHAPPELEAR: You have not read 11 exactly what it says. You added a word. 12 MR. KRAVITZ: It says: To hold, 13 maintain and control the common properties of The 14 Landings Phase VII and VIII. 15 Q. Is that not what it says on the 16 document? 17 A. Yes. 18 Q. Thank you. 19 Were you aware of that purpose of that 20 entity? 21 A. No. 22 MR. CHAPPELEAR: Objection. He just 23 said he's never seen it. 24 MR. KRAVITZ: He answered the question.	Page 17 1 ----- 2 Thereupon, State's Exhibit 13 is marked 3 for purposes of identification. 4 ----- 5 Q. Mr. Yough, I've handed you Plaintiff's 6 Exhibit 13. It is a declaration of building and 7 development restrictions for The Landing 8 Development Phase VII, revised. 9 Have you seen this document before? 10 A. Yes. 11 Q. Okay. When did you first see this 12 document? 13 A. I don't remember. 14 Q. Did you see it any time around the time 15 that the trust acquired the property at 50 16 Wildwood Lane? 17 A. No. 18 Q. No. 19 A. Just to be clear, would you rephrase 20 that again? 21 Q. Okay. I asked you if you saw this 22 declaration at any time around the trust acquired 23 the property at 50 Wildwood Lane? 24 A. The Yough Preservation Trust?

1 Q. Either trust. You had two trusts.
 2 There was a --
 3 A. No.
 4 Q. Any trust that the Yough had
 5 involvement in.
 6 A. No.
 7 Q. And then you said you've seen it, but
 8 you're not sure when you've seen it. Do you think
 9 you've seen it in the last 10 years?
 10 A. No.
 11 Q. Okay. So probably within the last five
 12 years if you had to give a range of when you last
 13 saw it?
 14 A. No.
 15 Q. Okay. So 10 years is the best you can
 16 estimate?
 17 A. You mean when I saw this?
 18 Q. Yeah, yeah. You're saying you saw it.
 19 You don't remember when. You said it wasn't 10
 20 years ago. We know that.
 21 MR. CHAPPELEAR: Objection. That
 22 misstates what he said.
 23 MR. KRAVITZ: No, it's not.
 24 MR. CHAPPELEAR: Yes, it is.

1 MR. KRAVITZ: Quit with your speaking
 2 objections. If you want to object, object and
 3 state your grounds. I'm just trying to ask him a
 4 straight question, when he saw this. And what he
 5 said was that it wasn't 10 years ago.
 6 Q. And if that's the best you can do,
 7 Mr. Yough, today, then that's fine. I'm just
 8 trying to get an estimate of when you last saw
 9 this.
 10 MR. CHAPPELEAR: That is absolutely not
 11 what he said. You have misstated the evidence.
 12 Please ask a proper question.
 13 Q. Mr. Yough, did you see this declaration
 14 10 years ago?
 15 A. No.
 16 Q. And have you seen it -- and have you
 17 seen it in the last five years?
 18 A. Yes.
 19 Q. Okay. And is that the best estimate
 20 you can give in terms of when you may have last
 21 seen this document?
 22 A. Yes.
 23 Q. Okay. All right.
 24 I'm going to refer you to the third

1 page of the exhibit, Exhibit 13. It has a Bates
 2 number of ODNR_004359. And I'm going to refer you
 3 to paragraph B that says: Developer shall require
 4 the owners of all lots to become members of a
 5 nonprofit corporation known as The Landings Common
 6 Area Association, Inc.
 7 Do you see that sentence that I'm
 8 talking about?
 9 A. I see that.
 10 Q. Okay. Do you know anything about The
 11 Landings Common Area Association, Inc.?
 12 A. No.
 13 Q. Okay. And was that ever created, to
 14 your knowledge?
 15 A. I don't know.
 16 Q. Okay. All right.
 17 A. I've never seen it.
 18 Q. All right. I'm going to move down to
 19 the next paragraph on paragraph B. It says: Each
 20 lot owner will pay an annual assessment in an
 21 amount determined by the board of trustees of the
 22 corporation, which shall be \$200 until changed by
 23 the corporation.
 24 Do you ever recall any assessment for

1 \$200 being assessed?
 2 MR. CHAPPELEAR: Are you referring to
 3 by the board of trustees of the corporation --
 4 MR. KRAVITZ: Yes.
 5 MR. CHAPPELEAR: -- that is The
 6 Landings Common Area Association, Inc.?
 7 MR. KRAVITZ: Yes.
 8 A. No.
 9 Q. Okay. And -- okay.
 10 What's your understanding of this
 11 declaration?
 12 MR. CHAPPELEAR: Objection.
 13 A. I don't have any understanding of it.
 14 -----
 15 Thereupon, State's Exhibit 14 is marked
 16 for purposes of identification.
 17 -----
 18 Q. I've handed you what's been marked
 19 Exhibit 14.
 20 A. Yes.
 21 Q. This one is the declaration of building
 22 and development restrictions for The Landing
 23 Development Phase VIII.
 24 Have you ever seen this document

Page 22 1 before? 2 A. Yes. 3 Q. Okay. And to the best of your 4 recollection, when was the last time you saw this 5 document? 6 A. The last time I saw it? 7 Q. Yes. 8 A. Gee. I've seen it before, but I can't 9 recollect when it was. 10 Q. Okay. And would your answer be the 11 same for when you first saw it? 12 A. When I first saw it? 13 Q. Yeah. 14 A. Probably not, no. 15 Q. Okay. When did you first see -- 16 A. That's what I can't remember. 17 Q. Okay. That's what you can't remember? 18 A. I can't remember when I first saw it. 19 Q. Okay. 20 ----- 21 Thereupon, State's Exhibit 15 is marked 22 for purposes of identification. 23 ----- 24 Q. I've handed you what's been marked as	Page 24 1 involved in this document in any way? 2 MR. CHAPPELEAR: Objection. Multiple 3 questions. 4 Q. Were you involved in this document in 5 any way? 6 A. Yes. 7 Q. Okay. And how were you involved? 8 A. I sat in on a group of people that 9 prepared it. 10 Q. Okay. And on page 3 of Exhibit 15, is 11 that your signature at the top where it says 12 signature on the top? 13 A. Which one? 14 Q. On page 3. It says: Required articles 15 and original appointment of agent must be signed 16 by the incorporators. And then there's a 17 signature next to that. 18 MR. CHAPPELEAR: Are you referring to 19 the fourth page of this document? 20 MR. KRAVITZ: Yes. It's the fourth 21 page of the document, and then -- and the actual 22 articles, it says page 3, but it is the fourth 23 page of the document. 24 A. Page 3 of 3?
Page 23 1 Plaintiff's Exhibit 15, and it is The Landing 2 Development Phase VII and Phase VIII Property 3 Owners Association, Inc., articles of 4 incorporation. 5 MR. CHAPPELEAR: Objection. Misstates 6 the evidence. 7 Q. I've handed you the exhibit. It is The 8 Landing Development Phase VII and Phase VIII 9 Property Owners Association, Inc., Articles of 10 Incorporation, is it not? 11 MR. CHAPPELEAR: Objection. Misstates 12 the evidence. 13 Q. Can you answer the question? 14 MR. CHAPPELEAR: You've added a word in 15 the title. 16 MR. KRAVITZ: I'll rephrase it one more 17 time. 18 Q. I'm handing you this Exhibit 15. It is 19 The Landing Development Phase VII and VIII 20 Property Owners Association, Inc., Articles of 21 Incorporation; is that correct? 22 A. Correct. Yes. 23 Q. Okay. Do you know what this -- are you 24 aware -- what does this document -- were you	Page 25 1 Q. Yeah, where it says page 3 of 3. 2 A. Okay. Yes, that's my signature. 3 Q. Okay. And there it says you were also 4 the trustee? 5 A. I was a trustee. 6 Q. Okay. And what's your understanding of 7 the purpose of this entity? 8 A. As I understand it, it was to establish 9 the homeowners association, the HOA. 10 Q. Okay. For which phases? 11 A. VII and VIII. 12 Q. Okay. And what was the purpose of the 13 homeowners association? 14 A. Basically, to -- so people would abide 15 by the deed restrictions. 16 Q. Okay. And what deed restrictions in 17 particular? 18 A. Well, there are so many, I couldn't 19 pick out any one. But if they're in violation of 20 that, the deed restrictions were meant to keep the 21 community as it was planned. 22 Q. Okay. Would any of the deed 23 restrictions include the ones that I showed you 24 earlier, the VII and VIII declarations that had

Page 26 1 restrictions? 2 A. I don't understand that one. 3 Q. Okay. Let me go back to our exhibit 4 that we showed earlier. 5 MR. WAMBAUGH: 13 and 14. 6 MR. KRAVITZ: What is it? 7 MR. WAMBAUGH: 13 and 14. 8 Q. Yeah, Exhibits 13 and 14. 9 MR. CHAPPELEAR: Wait. What's the 10 question? 11 Q. Are there any restrictions in there 12 that were meant to be enforced through that 13 entity? 14 A. On these? 15 Q. Yes. 16 A. We made new ones for this one. I don't 17 know anything about this -- these restrictions. 18 Q. Okay. 19 ----- 20 Thereupon, State's Exhibit 16 is marked 21 for purposes of identification. 22 ----- 23 Q. All right. I've handed you what's been 24 marked as Plaintiff's Exhibit 16, and these are	Page 28 1 the overall subdivision welfare and to undertake 2 any matter necessary for the care, protection and 3 preservation of the subdivision. 4 Did I read that correctly? 5 MR. CHAPPELEAR: Objection. You did 6 not. 7 Q. Is the -- can you -- does that 8 accurately reflect what the purpose of the 9 organization is? 10 MR. CHAPPELEAR: What you read or what 11 it says? 12 MR. KRAVITZ: What it says under 13 Section 1(a). 14 A. Is -- oh, Section -- oh, down here. 15 Q. Yeah. I'll repeat it for the record 16 because apparently I may have misstated a word or 17 a comma or something. I don't know. But I'll 18 repeat it. 19 It says: To have an association 20 composed of members who are lot owners in the 21 subdivision to ensure that property owners are 22 maintaining their properties following the 23 recorded building and use restrictions to enhance 24 the overall subdivision welfare and to undertake
Page 27 1 the regulations and bylaws of The Landing 2 Development Phase VII and VIII, Inc.; is that 3 correct? 4 A. Correct. 5 Q. And were you involved in the creation 6 of this document in any way? 7 A. Yes. 8 Q. What was your involvement? 9 A. I sat in on a meeting where people were 10 reviewing restrictions that should take place in 11 the development. 12 Q. Who was at that meeting? 13 A. I'm not real sure. I do know that 14 Janet Boyd was. 15 Q. Who is Janet Boyd? 16 A. She was a trustee at the time. 17 Q. All right. I want to direct your 18 attention to the first page of the bylaws under 19 Article 2, Purposes and Organization. Under 20 Purposes, under Subsection A, it says: To have an 21 association composed of members who are lot owners 22 in the subdivision to ensure that property owners 23 are maintaining their properties following the 24 recorded building and use restrictions to enhance	Page 29 1 any other matter necessary for the care, 2 protection, and preservation of the subdivision. 3 Is that what it states? 4 A. Yes. 5 Q. And is that your understanding of the 6 purpose of this entity? 7 A. Yes. 8 Q. Okay. And, also, Subsection B mentions 9 to collect assessments for the payment of common 10 expenses in accordance with Section 5312.10; is 11 that correct? 12 A. 5312.10? 13 Q. Yes. 14 A. Yes. 15 Q. Okay. All right. 16 And to your knowledge, were assessments 17 ever issued by this entity? 18 A. No. 19 Q. Were you aware that The Landing 20 Development Phase VII and Phase VIII Property 21 Owner Association, Inc., had its articles 22 cancelled in 2017? 23 MR. CHAPPELEAR: Objection. You've 24 misstated the name of the entity.

Page 30 1 Q. Were you aware that The Landing 2 Development Phase VII and Phase VIII Property 3 Owners Association, Inc. cancelled their articles 4 of incorporation on the 4th day of September in 5 2017? 6 MR. CHAPPELEAR: Objection. You have 7 misstated the name of the entity. 8 Q. Answer the question, please. 9 MR. CHAPPELEAR: I am telling you I am 10 objecting to the form of your question because you 11 have misstated the name of the entity. 12 MR. KRAVITZ: I'm asking -- I don't 13 know how many times I have to say it. I'm reading 14 right from the document. 15 MR. CHAPPELEAR: You are not. 16 MR. KRAVITZ: It says: The Landing 17 Development Phase VII and VIII Property Owners 18 Association, Inc. 19 I'll have to enter it into the record 20 just so we can be clear. 21 MR. WAMBAUGH: 17. 22 Q. I mean, I'm not trying to play any 23 tricks on you. I'm just trying to ask you 24 questions about what's here.	Page 32 1 incorporation cancellation before? 2 A. You mean that (indicating)? 3 Q. Yes. 4 A. I have not seen that. 5 Q. And I'm having trouble reading today. 6 So can you read to me what it says the name of the 7 entity is? 8 A. Read the name of the entity? 9 Q. Yes. 10 A. It says: The Landing Development Phase 11 VII and VIII Property Owners Association, Inc. 12 Q. Okay. And your testimony is -- were 13 you aware of these cancellations of the articles 14 on that date? 15 A. No. 16 Q. Okay. And do you know why the articles 17 were cancelled on that date? 18 A. No. 19 Q. All right. 20 ----- 21 Thereupon, State's Exhibit 18 is marked 22 for purposes of identification. 23 ----- 24 Q. All right. Mr. Yough, I'm handing you
Page 31 1 MR. CHAPPELEAR: Then please ask the 2 question stating the name of the entity correctly. 3 ----- 4 Thereupon, State's Exhibit 17 is marked 5 for purposes of identification. 6 ----- 7 Q. All right. I've given you Exhibit 17. 8 It's the cancellation of articles. I will read it 9 one more time. The Landing Development Phase VII 10 and Phase VIII Property Owner Associations, Inc. 11 MR. CHAPPELEAR: Mr. Kravitz -- 12 MR. KRAVITZ: I don't understand. 13 That's what it says. 14 MR. CHAPPELEAR: I'm going to try to 15 explain it to you. 16 MR. KRAVITZ: Okay. Go ahead. 17 MR. CHAPPELEAR: Because you have, four 18 times now, inserted the word "Phase" before VIII. 19 That's not in there. In addition, the last time 20 you made "Association" plural. So you are 21 misstating the name of the entity. 22 MR. KRAVITZ: All right. Let's move 23 on. 24 Q. Have you seen these articles of	Page 33 1 Exhibit 18. This is the reinstatement of the 2 articles of incorporation for The Landing 3 Development Phase VII and VIII Property Owners 4 Association, Inc.; is that correct? 5 A. The Landing Development Phase VII and 6 VIII Property Owners Association, Inc., yes. 7 Q. Yeah. And were you aware that it was 8 reinstated recently on February 28th, 2023? 9 A. No. 10 Q. Were you the trustee -- were you the 11 trustee for The Landing Development Phase VII and 12 VIII Property Owners Association, Inc., from 2012 13 through 2013? 14 A. Objection. 15 Q. Were you the -- I want to know when you 16 were the trustee for that entity. 17 MR. CHAPPELEAR: Well, I'll object 18 again. Your question assumes a singular trustee. 19 Q. Were you one of the trustees? 20 A. I truthfully do not remember when I 21 served as trustee of the association, the specific 22 dates. 23 MR. KRAVITZ: What are we on, Joe? 24 MR. WAMBAUGH: 19.

1 -----
2 Thereupon, State's Exhibit 19 is marked
3 for purposes of identification.
4 -----
5 MS. AMADOR: Is this 19, Brett?
6 MR. KRAVITZ: Correct.
7 Q. Okay. I've handed you Exhibit 19. I
8 will represent to you that these are responses of
9 the Long Defendants to Plaintiff State of Ohio's
10 first set of requests for admission,
11 interrogatories, and request for production of
12 documents.
13 Have you ever seen this document
14 before?
15 A. Yes.
16 Q. Okay. I'm going to turn your attention
17 to the response to Interrogatory 18. The
18 interrogatory itself starts on page 19, and then
19 on page 20, it has the answer. Interrogatory
20 No. 18 asks: Identify which Long Defendants have
21 at any time served as an officer, trustee, or
22 representative for The Landing Development Phase
23 VII and VIII Property Owners Association, Inc.,
24 and identify the role and date of service.

1 for purposes of identification.
2 -----
3 MR. KRAVITZ: I don't have as many
4 copies on these, but I'll give everybody an
5 electronic one later. Everyone has a copy of
6 this.
7 MR. CHAPPELEAR: Thank you.
8 Q. All right. I'm handing you a document
9 that's been marked as Exhibit 20. I will
10 represent to you that these are reportedly
11 documents that were signed at closings relating to
12 the Phase VII and/or VIII properties.
13 I'm just asking you, do you ever
14 remember signing anything like this at a closing
15 when the trust acquired 50 Wildwood Lane?
16 A. I do not remember signing anything like
17 that.
18 Q. Okay. All right.
19 Mr. Yough, I'm going to go through some
20 of the history of -- I'm going to go through some
21 of the history of communications with ODNR now
22 over the years.
23 MR. KRAVITZ: What are we on?
24 MR. WAMBAUGH: 21.

1 And then the answer identifies a number
2 of people, and I'm just going to focus on where
3 it's referencing you. And it says, according to
4 this document, that you were president from 2013
5 through 2014.
6 Do you see that --
7 A. Yes.
8 Q. -- on the first line?
9 A. Yes.
10 Q. Okay. And then it also says, in the
11 year 2012 through 2013, that you were a trustee.
12 A. Yes.
13 Q. Is that correct?
14 A. Yes.
15 Q. All right. Does this refresh your
16 recollection as to when you held those positions?
17 A. (Indicates affirmatively.)
18 Q. Yes?
19 A. Yes.
20 Q. Okay.
21 MR. KRAVITZ: What are we on?
22 MR. WAMBAUGH: 20.
23 -----
24 Thereupon, State's Exhibit 20 is marked

1 -----
2 Thereupon, State's Exhibit 21 is marked
3 for purposes of identification.
4 -----
5 Q. Mr. Yough --
6 A. Yes.
7 Q. -- I've handed you Plaintiff's Exhibit
8 21, and I'm going to represent to you that these
9 are notes from ODNR kept of certain conversations.
10 Some of those conversations were with you, and I'm
11 going to ask you about some of these. And then
12 we're also going to go over some of the documents.
13 There will be documents that we talk about today
14 that relate to these conversations. So we may
15 come back to this more than once.
16 And I'm going to go -- I'm going to
17 direct your attention to ODNR Bates No. 00187.
18 Do you see the Bates numbers on the
19 bottom corner of the pages?
20 A. That's these.
21 Q. Yeah. Now, at the top of this -- of
22 these notes is a date that says November 10th,
23 2009. And it states: Received a phone call from
24 Cloyd Yough, a trustee of The Landings Property

Page 38 1 Association, concerning the letter addressed to 2 the dam owners of the Knox Cattle Company Dam, 3 dated 10-14-2009. 4 Do you remember having such a 5 conversation back in 2009? 6 MR. CHAPPELEAR: Objection. Misstates 7 the statement. 8 Q. Do you remember having a conversation 9 with ODNR around that time, November 10th, 2009? 10 A. I had several conversations with ODNR 11 in the past. 12 Q. Okay. 13 A. But as specific dates, I couldn't tell 14 you. 15 Q. Okay. All right. 16 Well, we'll go over some of those 17 documents, too, but I'll just ask -- it does note 18 that -- it says: Cloyd asked several questions. 19 Who owns the dam? 20 In parentheses, it says: They thought 21 they were sole owners. 22 Answer: From what we could research 23 from Knox County Auditor's Office, all those 24 listed in the letter.	Page 40 1 A. I recollect the answer. I don't 2 remember asking the question. 3 Q. Okay. All right. 4 I'm going to move on to Question No. 4. 5 Can The Landings change their lake into a 6 detention basin? 7 Answer: Yes, but keep in mind, a 8 detention basin does not permanently store water. 9 Another option they have is to redesign the dam to 10 get it exempt from ODNR jurisdiction, much smaller 11 pond. 12 Do you remember asking that question? 13 A. I remember that being discussed. 14 Q. Okay. 15 ----- 16 Thereupon, State's Exhibit 22 is marked 17 for purposes of identification. 18 ----- 19 MR. KRAVITZ: We're on 22, right? 20 MR. WAMBAUGH: Correct. 21 Q. All right. I've handed you Exhibit 22. 22 It is an ODNR letter dated October 14, 2009. It 23 is addressed to several persons. The first one on 24 the list is Mr. Steve Mullins, The Landings
Page 39 1 Do you remember asking that question? 2 A. No. 3 Q. Or that response? 4 A. (Indicates negatively.) 5 Q. No, okay. Do you remember asking the 6 question, why is ODNR addressing this now? That's 7 point number 2. 8 A. I remember asking that question at one 9 time, yes. 10 Q. Okay. And here it says: Answer: 11 Recent site visit identified downstream 12 development and some modifications to the dam that 13 we were unaware of. As a result, the dam was 14 reclassified as a Class 1. 15 Do you remember getting that type of 16 answer? 17 A. I remember receiving that, yes. 18 Q. Okay. And the third question says: 19 Why does the dam not meet required dam safety 20 standards? 21 Answer: Hydraulic -- a hydraulic study 22 needed with plans to bring dam up to compliance. 23 Do you remember asking that question or 24 receiving that answer?	Page 41 1 Property Owners Association, Inc. 2 First, let me ask you if you've ever 3 seen this letter? 4 A. I don't remember seeing this letter. 5 Q. Okay. Were you ever informed about 6 this letter? 7 A. Well, I'd have to read it over before I 8 could say that specifically, but I probably... 9 Q. Okay. On page 2, the letter -- I'm 10 going to read just the -- when you get to the 11 second paragraph on page 2. It's Bates 12 No. ODNR_001029. 13 A. Yep. 14 Q. It states: The Knox Cattle Company Dam 15 currently does not meet required dam safety 16 standards. 17 And then it says: The owners must 18 address the following items within five years of 19 the date of the letter. 20 And then it mentions the different 21 items. 1, perform a hydraulic -- hydrologic and 22 hydraulic study to determine the adequacy of the 23 dam's discharge/storage capacity to safely pass 24 the required design flood.

Page 42 1 And then -- I just read the first 2 sentence of that one. 3 Point 2 -- I'll just read the first 4 sentence of that one -- Prepare an operation, 5 maintenance, and inspection manual and an 6 emergency action plan, EAP, including an 7 inundation map. 8 Point 3: Provide a device or plan to 9 permit draining of the lake within a reasonable 10 period of time. 11 So those were kind of the actions 12 items. Do you remember any of these? 13 A. I remember those action points. 14 Q. Okay. 15 ----- 16 Thereupon, State's Exhibit 23 is marked 17 for purposes of identification. 18 ----- 19 Q. I've handed you Exhibit 23. It is a 20 July 26th, 2010 letter addressed to multiple 21 entities, the first one, The Landings Property 22 Owners Association, Inc., care of Cloyd Yough. 23 Do you remember ever receiving a letter 24 like this?	Page 44 1 didn't the developer or the City not know to 2 contact us? 3 Do you remember anything -- any 4 conversation of that nature occurring around that 5 time in 2010? 6 A. Who had the questions? 7 Q. Do you remember asking those questions? 8 A. I could have. 9 Q. Okay. 10 A. I don't know for sure. 11 Q. And do you remember receiving any 12 answers along those lines to those questions as 13 it's stated? 14 There's only one question where there 15 was an answer provided. I realize that. And that 16 was where -- the question was: Why did not know 17 [sic] about downstream development, and then it 18 says it was last inventoried in 1992, prior to the 19 downstream development. 20 A. See, that does not sound like my 21 question. 22 Q. Okay. All right. 23 Let's move on on this page. It says: 24 Sent Cloyd the ASD SO Green pamphlet procuring the
Page 43 1 A. Yes. 2 Q. Okay. And in this, ODNR was seeking 3 fees for -- dam safety fees, annual fees? 4 A. Correct. 5 Q. Okay. And what did you do in response 6 to this letter? 7 A. Nothing. 8 Q. Nothing. And why is that? 9 A. I gave it to my attorney -- or our 10 attorney. 11 Q. Okay. And who was your attorney at 12 that time? 13 A. Kim Rose. 14 Q. Okay. I want to go back to Exhibit 21. 15 These were the notes from ODNR. And I want you to 16 look at the -- on the first page, and there's a 17 date that says, at the top, March 16, 2010. Your 18 name is identified as the trustee of The Landings 19 Property Owners Association, and it has a couple 20 questions that are written that say, why did we 21 not know about downstream development? 22 And then in parentheses, it says it was 23 last inventoried in 1992, prior to the downstream 24 development. And then the next question was, why	Page 45 1 services of a professional engineer. 2 Do you remember that, receiving a 3 pamphlet? 4 A. No. 5 Q. No, okay. 6 Do you remember being offered 7 assistance to review the scope of services to try 8 to make several proposals that are comparable? 9 A. Yes. 10 Q. Okay. And ODNR offered that to you? 11 A. Yes. 12 Q. Okay. 13 MR. KRAVITZ: What are we on? 24? 14 MR. WAMBAUGH: 24. 15 ----- 16 Thereupon, State's Exhibit 24 is marked 17 for purposes of identification. 18 ----- 19 Q. Okay. I've handed you Exhibit 24. 20 I'll give you a moment to look at it before I ask 21 you about it. 22 Okay. Exhibit 24 is an email from Jim 23 Huitger -- I'm actually not sure how you pronounce 24 Jim's last name, but I'll spell it for the record.

1 It's H-U-I-T-G-E-R.
2 So it's an email from Jim Huitger to
3 Cloyd Yough -- Yough -- I'm sorry --
4 A. Yough.
5 Q. Cloud Yough.
6 A. Cloyd Yough.
7 Q. Cloyd Yough. To you.
8 And it was dated November 3rd, 2010?
9 A. (Indicating).
10 Q. And the subject is Procuring
11 Engineering, Knox Cattle Dam.
12 And it says: Previously, I sent to you
13 a publication dam ownership procuring the services
14 of a professional engineer.
15 And the next paragraph, it says: For
16 your situation, we recommend you select an
17 engineer who is familiar with our laws and our
18 rules. The engineer should have experience in dam
19 safety and design.
20 We recommend the first phase of
21 services would be to hire an engineer on a lump
22 sum basis for the following: Prepare a field
23 topographic survey of the site and the downstream
24 structures potentially affected by a breach of the

1 A. I think there were some inquiries as to
2 cost of the engineer presented to the trustees.
3 At that time we had inadequate funds.
4 -----
5 Thereupon, State's Exhibit 25 is marked
6 for purposes of identification.
7 -----
8 Q. Why were there inadequate funds at that
9 time? You said they had inadequate funds.
10 A. Yes.
11 Q. So, why? Why was that so?
12 A. There was a bank account, and the bank
13 account didn't measure up to what the cost was
14 going to be.
15 Q. Okay. And were there any -- how did
16 the entity have any money? Did anybody pay any
17 dues for the entity?
18 A. Yes.
19 Q. Okay. And when were those -- were
20 those dues collected on an annual basis?
21 A. For a period of time, yes.
22 Q. And what period of time do you
23 remember?
24 A. I can't remember that.

1 dam.
2 2: Prepare a hydrology and hydraulic
3 study to define the potentially affected by a
4 breach of the dam [sic].
5 2: Prepare a hydrology and hydraulic
6 study to define the 25 percent, 50 percent, and
7 100 percent probable maximum flood and route these
8 flows through the dam.
9 3: Prepare an emergency action plan.
10 So, let me ask you, do you remember
11 receiving this email?
12 A. Yes.
13 Q. Okay. And what did you do in response
14 to this email?
15 MR. CHAPPELEAR: Well, first, I'm going
16 to object because this exhibit is incomplete. It
17 says page 1 of 3, but we don't have the other
18 pages. There are also references to attachments,
19 and we don't have the attachments either.
20 Q. What did you do in response to this
21 email?
22 A. What?
23 Q. What did you do in response to this
24 email?

1 Q. All right. I'm going to direct your
2 attention to Exhibit 25. Exhibit 25 is a letter
3 from ODNR dated November 15th, 2010. It is
4 addressed to a number of entities. The first, The
5 Landings Property Owners Association, Inc., and
6 then it has care of, and it's you, right? Isn't
7 that correct?
8 A. Yes.
9 Q. Okay. And do you know why it was sent
10 to you?
11 A. Yes.
12 Q. Why? Why was ODNR sending the letter
13 to you?
14 MR. CHAPPELEAR: Well, I'm going to
15 object because this was not sent to Mr. Yough's
16 address.
17 Q. Why does it say care of you on here?
18 Why is ODNR sending this letter to you?
19 A. They had no one else to send it to.
20 Q. And why did you talk with them and
21 represent The Landings Property Owners
22 Association, Inc., then? Why was it you?
23 MR. CHAPPELEAR: Objection. That
24 misstates the evidence.

Page 50 1 Q. Do you know why ODNR was talking to 2 you? Your answer was that -- because they had no 3 one to talk to, but do you know why they selected 4 you? 5 MR. CHAPPELEAR: He's asking whether 6 you know what they were thinking. 7 A. I don't know what they were thinking. 8 Q. So why were you talking to ODNR about 9 Knox Cattle Dam on behalf of The Landings Property 10 Owners Association, Inc.? 11 MR. CHAPPELEAR: Objection. That 12 misstates the evidence. 13 Q. Why is ODNR corresponding with you for 14 obligations of The Landings Property Owners 15 Association, Inc.? 16 MR. CHAPPELEAR: If you know what ODNR 17 was thinking. 18 A. I cannot answer. 19 Q. Okay. And why did you choose to talk 20 to ODNR about these matters? 21 A. We were receiving information that said 22 the dam was inadequate, and I started talking to 23 ODNR about possible solutions. And I called them 24 quite often, and they talked to me quite often.	Page 52 1 for purposes of identification. 2 ----- 3 Q. I've handed you the Dam Safety 4 Inspection Report with an inspection date of 5 November 24th, 2010. I'm going to give you just a 6 second to look at the document. 7 MR. CHAPPELEAR: Do you want him to 8 read the entire thing? 9 MR. KRAVITZ: No, just enough so that 10 he can see what it is. 11 MR. CHAPPELEAR: I'll note that the 12 last two pages of this document are a 13 two-page letter dated April 12th, 2011, and does 14 not appear to be part of the November 24, 2010 Dam 15 Safety Inspection Report. 16 MR. KRAVITZ: Okay. Yeah, thank you. 17 Thank you for pointing that out. Let's take that 18 out of the exhibit. 19 What number is this one? 20 MR. WAMBAUGH: 26. 21 MR. KRAVITZ: 26. All right. 22 Q. Have you seen this Exhibit 26 before? 23 A. No. 24 Q. No, okay. That makes the questions
Page 51 1 Q. All right. Let's talk about this 2 specific letter. Do you remember this letter? 3 MR. CHAPPELEAR: Objection. This 4 letter was not sent to Mr. Yough's address. 5 Q. Do you remember seeing this letter? 6 A. Yes. 7 Q. Okay. And this letter was informing 8 you that there was going to be an inspection of 9 the dam coming up in November; is that correct? 10 A. Yes. 11 Q. Okay. And that inspection was going to 12 be by ODNR? 13 A. I'm sorry? 14 Q. And the inspection was going to be done 15 by ODNR? 16 A. Yes. 17 Q. Okay. 18 MR. KRAVITZ: What are we on? 19 MR. WAMBAUGH: 26. 20 MR. KRAVITZ: I only have two extra 21 copies of these, but it's the 2010 Dam Safety 22 Report. 23 ----- 24 Thereupon, State's Exhibit 26 is marked	Page 53 1 short on this one. 2 MR. KRAVITZ: We're on 27 now? 3 MR. WAMBAUGH: Correct. 4 ----- 5 Thereupon, State's Exhibit 27 is marked 6 for purposes of identification. 7 ----- 8 Q. All right. I've handed you Plaintiff's 9 Exhibit No. 27. It is an email dated 10 February 23rd, 2011, sent from Keith Banachowski 11 of ODNR to you. 12 Do you remember receiving this email? 13 A. I received the email, but I did not 14 receive the attachment. 15 Q. Okay. And in this email, it states -- 16 I'm going to read the second-to-last paragraph: 17 Based on these numbers, you will likely need to 18 lower the embankment a little more than three feet 19 and the pool level about two feet. If you believe 20 that there's less volume in the lake, and that 21 could be the case, you'll need to have a survey 22 done. 23 And what did this email indicate to you 24 that needed to be done?

Page 54 1 A. This was in a discussion of changing 2 the classification of the dam back to where it was 3 originally. 4 Q. Okay. 5 A. And he was pointing out these are some 6 things that could be done. 7 Q. And did you select any of those things? 8 Did you select any of the options of what should 9 be done? 10 A. We did not select options. 11 Q. Okay. And why was that? 12 A. There was -- the city engineer at the 13 time told me that we would have to get a new study 14 on the stormwater system that would justify -- 15 that said that the stormwater system could still 16 be viable if this dam was lowered. 17 MR. KRAVITZ: Joe, what are we on? 18 MR. WAMBAUGH: 28. 19 ----- 20 Thereupon, State's Exhibit 28 is marked 21 for purposes of identification. 22 ----- 23 Q. All right. I've handed you Plaintiff's 24 Exhibit 28. It is a letter from ODNR dated	Page 56 1 Q. I've handed you Exhibit 29. It is an 2 email chain of several emails. The first is from 3 Keith Banachowski from ODNR to you. It was dated 4 April 13th, 2011. The subject is Knox Cattle Dam, 5 and it states: The inspection report from the dam 6 has been completed. You should receive a hard 7 copy in the next 10 days. 8 Do you remember receiving this email? 9 A. I do not remember receiving it. I 10 probably did. 11 Q. Okay. And I think you said that you 12 didn't remember, but you don't remember ever 13 receiving the inspection report? 14 A. Right. 15 Q. Okay. On -- I'm going to move further 16 down on these emails. 17 There's an email at the bottom of the 18 first page from you to Keith Banachowski, and it's 19 dated November 15th, 2010. It says: Keith, would 20 you please send a letter to the Mount Vernon City 21 Engineer, Cameron Keaton. Cameron is assisting us 22 in this matter. 23 Do you know why you requested that? 24 A. Why I requested it?
Page 55 1 April 12th, 2011. The first -- there's a number 2 of entities or persons listed. The first entity 3 has The Landing Property Associations, Inc. 4 Again, it's care of, with your name on it; is that 5 correct? 6 MR. CHAPPELEAR: No. Objection. That 7 is not what it says. It says The Landings 8 Property Owners Association, Inc., care of Cloyd 9 Yough, and it has the address for Mr. Mullins, not 10 for Mr. Yough. 11 Q. Does it have your name on it? 12 A. Yes. 13 Q. Okay. And do you remember receiving 14 this letter or seeing this letter? 15 A. I do not remember. 16 MR. KRAVITZ: I think we only have a 17 few more of these letters. We're making our way 18 through them -- or emails. 19 All right. What are we on, Joe? 20 MR. WAMBAUGH: 29. 21 ----- 22 Thereupon, State's Exhibit 29 is marked 23 for purposes of identification. 24 -----	Page 57 1 Q. Yeah, why you requested him to send a 2 letter to the Mount -- 3 A. I was working with Mr. Keaton. 4 Q. Okay. You were working with him on 5 what specifically? 6 A. On this Knox Cattle Dam thing. 7 Q. Okay. For a solution to bringing it 8 into compliance? 9 A. Who is responsible, yep. 10 MR. KRAVITZ: All right. What are we 11 on, Joe? 12 MR. WAMBAUGH: 30. 13 ----- 14 Thereupon, State's Exhibit 30 is marked 15 for purposes of identification. 16 ----- 17 MR. KRAVITZ: I only have two copies of 18 this one. 19 Q. Exhibit 30 is an August 5th, 2016 20 letter. I see that it is not addressed to you. 21 It's not addressed to The Landings Property Owners 22 Association, but on the last page of it, it does 23 have a CC to The Landings Property Owners 24 Association, Inc. So my question to you is

1 whether you ever saw this letter?
 2 A. No.
 3 Q. Okay. Do you know when was the last
 4 time you had a communication with ODNR about Knox
 5 Cattle Dam?
 6 A. I don't remember specifically.
 7 Q. Okay. Were -- were -- let me rephrase
 8 it.
 9 Did you have any communications with
 10 ODNR on the dam in 2018 that you remember?
 11 A. I don't remember.
 12 Q. Okay. All right.
 13 We talked about a lot of communications
 14 with ODNR. Do you remember having any other --
 15 any conversations with ODNR that we didn't cover
 16 here today that you have a specific recollection
 17 of?
 18 A. No.
 19 Q. Okay. And when you were involved with
 20 the homeowners association, when was the last time
 21 you discussed Knox Cattle Dam? That's not a good
 22 question. Let me rephrase it.
 23 With regards to your role in the
 24 homeowners association, when was the last time you

1 letter from the Ohio Department of Taxation, a
 2 final determination, that has a date of
 3 March 27th, 2012. So let me ask you about the
 4 first document.
 5 Do you remember filing this application
 6 for real estate property tax exemption and
 7 remission?
 8 A. Yes.
 9 Q. Okay. And what were -- what were you
 10 trying to do submitting this application?
 11 A. I was trying to get the properties
 12 exempt from taxation.
 13 Q. Okay. And what was your understanding
 14 of why they should be exempt?
 15 A. I'm sorry?
 16 Q. Okay. Let's back up.
 17 A. I didn't --
 18 Q. Oh, I'm sorry. Let me back up.
 19 A. Okay.
 20 Q. Okay. You said trying to get the
 21 property exempt from taxation, so let's look on
 22 the first page. And so those -- so we're talking
 23 about the property -- we're talking about Parcels
 24 No. 66-9 -- I'm sorry. Let me repeat it --

1 talked about Knox Cattle Dam with the homeowners
 2 association?
 3 MR. CHAPPELEAR: Are you referring to
 4 The Landings Development Phase VII and VIII
 5 Property Owners Association, Inc., when you refer
 6 to the homeowners association?
 7 MR. KRAVITZ: Yes.
 8 A. I don't really remember being in
 9 discussions when the VII and VIII -- during the
 10 VII and VIII period.
 11 MR. KRAVITZ: All right. What are we
 12 on?
 13 MR. WAMBAUGH: 31.
 14 MR. KRAVITZ: 31.
 15 -----
 16 Thereupon, State's Exhibit 31 is marked
 17 for purposes of identification.
 18 -----
 19 Q. I've handed you Plaintiff's Exhibit 31.
 20 I'll represent to you that there are two documents
 21 that are part of this exhibit. First is an
 22 application for real property tax exemption and
 23 remission that was filed on October 26th, 2011,
 24 according to the stamp, and then there is also a

1 66-09675162. That's the first parcel. And then
 2 the second parcel is 66-09675163. So that's the
 3 property we're talking about.
 4 A. Yes.
 5 Q. And that's the property that's around
 6 the Knox Cattle Dam area?
 7 A. Yes.
 8 Q. Okay. All right.
 9 And at that time -- and -- and then it
 10 identifies the applicant here as Landing Property
 11 Owners Association; is that correct?
 12 A. Yes.
 13 Q. Okay. And then it says, on the notices
 14 concerning this application should be sent -- and
 15 it identifies you by name, and then it says:
 16 Trustee, Landing Property Owners Association; is
 17 that correct?
 18 A. Yes.
 19 Q. Okay. And it has an address of 50
 20 Wildwood Lane?
 21 A. Correct.
 22 Q. And that's your address, right?
 23 A. Yes.
 24 Q. Okay. All right.

1 Now, you were -- you stated that you
 2 were trying to get this exempt, and my question to
 3 you is, what is your understanding of why the
 4 property should be exempt?
 5 A. Because it was a required piece of
 6 property for the stormwater system.
 7 Q. Okay. All right.
 8 And then on -- now I'm going to go to
 9 the second document, and it says it's dated -- I
 10 already referenced it. It's the Ohio Department
 11 of Taxation Final Determination. And -- and it
 12 appears here that the Ohio Department of Taxation
 13 granted the exception; is that correct?
 14 A. Yes.
 15 Q. Okay. And what's your understanding of
 16 why that exception was granted?
 17 A. I don't know what was in their
 18 thinking, no.
 19 Q. You don't know, okay.
 20 And in your understanding, was -- I'm
 21 sorry. Can you repeat for me what you said, your
 22 understanding of why it should be exempt?
 23 A. I believe I said that because it was a
 24 part of the stormwater system for that

1 Do you remember that?
 2 A. Yes.
 3 Q. Okay. And what was your role in those
 4 meetings? What was your role during those
 5 meetings where the restrictions were discussed?
 6 A. I guess it was just being a member.
 7 Q. Did you -- did you --
 8 A. Of the --
 9 Q. Oh, sorry.
 10 A. Of the association.
 11 Q. Okay. Did you just listen, or did --
 12 did you just listen, or did you do more than just
 13 listen during those meetings?
 14 A. I'm sure I gave an opinion or two about
 15 different restrictions.
 16 Q. And do you remember what any of those
 17 were?
 18 A. No, not really.
 19 Q. Okay. Did you have any other role in
 20 The Landings Development Phase VII and VIII
 21 Property Owners Association, Inc., other than to
 22 provide your input on restrictions during
 23 meetings?
 24 A. I don't know of any other role.

1 development.
 2 Q. Okay. And which development are you
 3 referring to?
 4 A. I'm talking about Phase VII and VIII
 5 for The Landings property -- or Landings
 6 development area.
 7 MR. KRAVITZ: All right. I think we're
 8 going to take a little bit of a break. I may be
 9 done, but I'm sure other people may have questions
 10 for you. But I'd like to take a little break and
 11 make sure I don't have any more questions for you.
 12 (A short recess is taken.)
 13 BY MR. KRAVITZ:
 14 Q. Okay. Around the time we were talking
 15 about Plaintiff's Exhibit 16, the bylaws of The
 16 Landings Development Phase VII and Phase VIII,
 17 Inc., we were talking about meetings that were
 18 done that you sat in regarding the restrictions.
 19 Let me give you a little more context.
 20 You talked about -- we talked about the
 21 purpose in the bylaws, and there was a reference
 22 to enforce building and use restrictions, and then
 23 you testified that you sat in on meetings
 24 regarding restrictions.

1 Q. Okay. You don't know of any other
 2 activities that you participated in during your --
 3 during the meetings?
 4 A. Not -- no.
 5 Q. Okay. All right.
 6 We had some discussion about dues, and
 7 I wanted to just get clarification. I'm going to
 8 talk about The Landing Development Phase VII and
 9 Phase -- I'm sorry. I have to repeat it --
 10 restate it -- The Landing Development Phase VII
 11 and VIII Property Owners Association, Inc. Did
 12 they ever collect dues as a homeowners
 13 association?
 14 A. No.
 15 Q. Did any homeowners association, to your
 16 knowledge, collect dues for Phases VII and VIII of
 17 The Landings?
 18 A. That's a little unclear.
 19 Q. Did any homeowners association collect
 20 dues, to your knowledge, around the Knox Cattle
 21 Dam?
 22 MR. CHAPPELEAR: Well, I understood
 23 your question until you added "around the Knox
 24 Cattle Dam."

1 MR. KRAVITZ: All right. Let me take
2 out "around the Knox Cattle Dam."
3 Q. I just want to know if The Landings
4 Development Phase VII and Phase VIII Property
5 Owners Association, Inc., ever collected any dues?
6 A. No.
7 Q. Okay. And did -- and did any
8 homeowners association, to your knowledge, that
9 relate to Phases VII or Phase VIII, collect dues?
10 A. Yes.
11 Q. Which association did?
12 A. Not sure I know the correct name.
13 Q. Would it be The Landings Property
14 Association, Inc.?
15 A. No.
16 Q. No. Would it be The Landings Common
17 Area Association?
18 A. No.
19 Q. No. So you don't know, as you sit here
20 today, what the name of the association was that
21 collected --
22 A. I don't recognize those names.
23 Q. Okay. And you can't remember the name
24 of any association specifically that collected the

1 that.
2 We had some discussion about the City
3 completing -- needing to complete a stormwater
4 runoff. Do you know if the City ever completed
5 the stormwater runoff?
6 A. No.
7 Q. No, okay.
8 Do you have any documents that relate
9 to Knox Cattle Dam? Let me rephrase it.
10 Do you have any documents that relate
11 to issues pertaining to compliance with dam safety
12 requirements for Knox Cattle Dam?
13 A. I don't remember.
14 Q. Okay. If you did have any documents,
15 where would they be?
16 A. I sent them all in. Anything to do
17 with the dam, I sent in.
18 Q. So you sent in to who?
19 A. Whoever requested it.
20 Q. Who requested information?
21 THE WITNESS: I sent those to you.
22 MR. CHAPPELEAR: He has sent documents
23 to Counsel.
24 MR. KRAVITZ: Okay. That -- okay.

1 dues even though you think that some association
2 did?
3 A. Yes.
4 Q. Okay. I want to refer you back to
5 Exhibit 21. We talked -- these were the ODNR
6 notes of conversations, and I want to refer you
7 back to ODNR Bates No. Page 001087.
8 Going to the third bullet, it said:
9 Cloyd asked several -- Cloyd asked several
10 questions.
11 And then in parentheses, it says: They
12 thought they were sole owners.
13 Do you ever remember saying that you
14 thought that the -- that The Landings Property
15 Owners Association were the sole owners of the
16 dam?
17 MR. CHAPPELEAR: Objection. Asked and
18 answered.
19 Q. Do you remember ever saying that, that
20 you thought that The Landings Property Owners
21 Association --
22 A. I do not remember.
23 Q. Okay. I think we were talking about
24 Exhibit 27. I want to refer your attention to

1 Q. And what were those documents?
2 A. I don't -- anything associated with
3 what I knew about the dam.
4 Q. Okay. All right. Well, we're going to
5 request those documents, but that's beyond today.
6 How many document did you provide,
7 approximately?
8 A. I did not count them.
9 Q. Is it more than 100?
10 A. Probably about that many (indicating).
11 I don't remember.
12 Q. You don't know if it was more than --
13 A. I did not count them.
14 Q. Okay. All right.
15 I'll just say -- how thick do you think
16 that stack of paper is in front of you?
17 A. I'd say about probably an inch, inch
18 and a half. I don't know.
19 MR. KRAVITZ: All right.
20 All right. That's it for me for right
21 now.
22 MS. AMADOR: I have questions. Should
23 we resituate?
24 MR. KRAVITZ: Sure.

Page 70 1 MS. AMADOR: Can I kick you out of your 2 seat? 3 MR. KRAVITZ: Oh, yes. Yes. 4 MS. AMADOR: Appreciate it. 5 Does anyone else have questions? 6 MR. BROEREN: I have questions. 7 MS. AMADOR: Do you want to go first? 8 MR. BROEREN: No, you can go first. 9 ----- 10 CROSS-EXAMINATION 11 BY MS. AMADOR: 12 Q. Mr. Yough, my name is Kelly Amador, and 13 I'm an attorney for Mullins Bros., in this 14 litigation. Thank you for your time today. I 15 wanted to ask you a few questions about your 16 involvement with the homeowners associations in 17 Phase VII and VIII, as well as the dam that we're 18 here to discuss. 19 So I tend to speak a bit quickly. If 20 you don't understand something I'm saying, feel 21 free to let me know, and I'm happy to rephrase, go 22 slower, speak louder. 23 So I understand that you live in Phase 24 VII or VIII of The Landings Development?	Page 72 1 A. I was aware that there were deed 2 restrictions, yes. 3 Q. And that was around the time you 4 purchased it? 5 A. Yes. 6 Q. Okay. Who informed you of those 7 restrictions? 8 A. I believe it was Bob Rauzi. 9 Q. And how did he inform you? 10 A. That there are deed restrictions. 11 Q. Did he go into any detail? 12 A. No. 13 Q. Did your title company make you aware 14 of your deed restrictions? 15 A. Not that I know of. 16 Q. And we -- I believe Brett spoke of this 17 briefly, but at closing, do you recall signing a 18 piece of paper acknowledging the deed restrictions 19 on the property? 20 A. No. 21 Q. Would you disagree if there were a 22 paper that was found with your signature on it? 23 A. Would I what? 24 Q. Would you disagree? So do you not
Page 71 1 A. Yes. 2 Q. Do you currently live there? 3 A. Yes. 4 Q. And you've lived there for 5 approximately the last 20 years? 6 A. Let's see. 7 -- not quite. 7 Q. Not quite. So you moved in in 2007, 8 right? You moved there in 2007? 9 A. That's about correct. 10 Q. Okay. And when you moved into the 11 property and purchased it, did you buy your home, 12 or did you build it? 13 A. It was built. 14 Q. Did you have a hand in building it? 15 A. Yeah. Yes. 16 Q. Do you know from whom you bought the 17 property that the home went on? 18 A. I bought it off of -- well, Brian Kight 19 and some associates of his. 20 Q. And who is Mr. Kight? 21 A. He's a builder, BDK Builders. 22 Q. And when you purchased the property 23 where your home is from Mr. Kight, were you made 24 aware of deed restrictions on the property?	Page 73 1 remember, or do you say you did not sign such a 2 piece of paper? 3 A. I don't remember. 4 Q. Okay. And you're aware that we're here 5 to partially discuss the homeowners association 6 affiliated with The Landings Development, and for 7 clarity sake, I will only be referring to two 8 different homeowners associations. 9 The first that I want to discuss is The 10 Landings Property Owners Association. Have you 11 heard of this association? 12 A. I don't think so. 13 Q. Okay. Let me back up a little bit. 14 When you moved into your property in 15 2007, did you become involved with a homeowners 16 association? 17 A. Yes. 18 Q. Do you recall the name of that 19 homeowners association? 20 A. No. 21 Q. Would you disagree that it could be The 22 Landings Property Owners Association, Inc.? 23 A. I don't remember. 24 Q. Okay. Can you describe your

1 involvement in this homeowners association when
 2 you moved in?
 3 A. Just because I was a homeowner.
 4 Q. What do you mean by that?
 5 A. Supposedly, we were in an association.
 6 Q. Were you required to join the
 7 homeowners association?
 8 A. No. There was no signing of anything.
 9 Q. I believe that you just testified that
 10 you don't recall having signed anything at closing
 11 regarding deed restrictions.
 12 A. That's correct.
 13 Q. Is it possible that you signed
 14 something regarding deed restrictions or a
 15 homeowners association at that time?
 16 A. I don't -- you sign a lot of things in
 17 a closing. I don't remember.
 18 Q. Okay. Did you have any involvement in
 19 The Landings Property Owners Association, Inc.?
 20 A. No.
 21 Q. Were you aware that there was a
 22 homeowners association that was in charge of the
 23 common areas of The Landings Phase VII or VIII?
 24 A. Yes.

1 Q. Was it within five years of purchasing
 2 your property?
 3 A. I don't know. It would be recorded in
 4 these documents here.
 5 Q. We'll get to those in one minute.
 6 A. Okay.
 7 Q. Do you know who else served as
 8 president of this homeowners association?
 9 A. I think there was a guy named Wise,
 10 Jeff Harris, Derk Demaree.
 11 Q. Okay. To your knowledge, did the
 12 homeowners association we're discussing, the one
 13 where you don't remember the name -- did it have a
 14 bank account?
 15 A. Yes.
 16 Q. Do you recall how much money was in the
 17 bank account?
 18 A. No.
 19 Q. Where did the money come from for that
 20 bank account?
 21 A. Fees.
 22 Q. And how were those fees assessed?
 23 A. \$200 a year.
 24 Q. And who collected that?

1 Q. And this is the association you don't
 2 recall the name of?
 3 A. Correct.
 4 Q. And this homeowners association, did
 5 you hold any positions of authority in it?
 6 A. Would you rephrase that again?
 7 Q. Yeah. So we've been talking about a
 8 homeowners association, but that you don't recall
 9 the name of.
 10 A. Right.
 11 Q. And while you were living in your
 12 current property, did you hold any positions of
 13 authority in that homeowners association?
 14 A. I did.
 15 Q. Can you explain those to me?
 16 A. As a trustee.
 17 Q. Okay. Did you ever serve as president?
 18 A. Yes.
 19 Q. Do you recall when that was?
 20 A. I think it's documented in these
 21 documents here.
 22 Q. Do you recall when you served as a
 23 trustee?
 24 A. Not really, no.

1 A. (Indicating).
 2 Q. Do you know who collected that money?
 3 A. Well, we had a treasurer.
 4 Q. Do you know who the treasurer was?
 5 A. There was more than one, I mean, at
 6 different times.
 7 Q. Can you name any that you recall?
 8 A. Chetan Patel.
 9 Q. Anyone else?
 10 A. Not really.
 11 Q. And I realize it's been quite a few
 12 years.
 13 A. Yeah, and I'm getting older all the
 14 time too.
 15 Q. It's a privilege denied to many.
 16 Do you recall what the most amount of
 17 money there was in this bank account?
 18 A. No.
 19 Q. Do you know what the money was used
 20 for?
 21 A. There was statements put out annually.
 22 Q. Who had the power to write checks?
 23 A. I don't know.
 24 Q. And do you know what the money was used

1 for?
2 A. I don't know. Well, I've already
3 answered that.
4 Q. Can you repeat it for me?
5 A. I told you it was in statements.
6 Q. Got it. Did this homeowners
7 association ever send out meeting notices?
8 A. Yes.
9 Q. How often?
10 A. Once a year.
11 Q. When do you recall receiving the first
12 meeting notice?
13 A. I don't recall.
14 Q. Would it have been around the time you
15 moved into the property?
16 A. Within a year or two?
17 Q. Yes.
18 A. Yes.
19 Q. So anywhere from 2007 to 2009?
20 A. Yes.
21 Q. Did you attend the meetings?
22 A. Yes.
23 Q. How frequently were the homeowners
24 association dues collected?

1 Q. Okay. Could it have possibly been they
2 stopped collecting dues in 2010 or 2011?
3 A. I don't remember.
4 Q. And when they stopped collecting dues,
5 did they notify the members?
6 A. Yes.
7 Q. How did they do that?
8 A. In a meeting, the annual meeting.
9 Q. And where was this meeting?
10 A. They were miscellaneous places, or
11 several different places.
12 Q. Did you attend every homeowners
13 association meeting?
14 A. No.
15 Q. Did you attend all the meetings where
16 you were a trustee?
17 A. Yes.
18 Q. Do you ever recall Mullins Bros.,
19 collecting dues from anyone?
20 A. No, I don't recall.
21 Q. Do you recall Mullins Bros., having
22 anything to do with the homeowners association
23 from when you moved in to 2011?
24 A. No.

1 A. Annually.
2 Q. Was there any reason they ever stopped
3 collecting dues?
4 A. What?
5 Q. Was there ever any time they stopped
6 collecting dues for a year or two?
7 A. I don't quite understand the question.
8 Q. Okay. So you testified that the
9 homeowners association collected dues annually?
10 A. Correct.
11 Q. Were there ever any years where they
12 didn't collect dues?
13 A. Well, they stopped.
14 Q. About when did they stop?
15 A. I cannot do that correctly. I don't
16 know exactly when that was.
17 Q. Would you say it was before 2009?
18 A. Stopped?
19 Q. Yes.
20 A. No.
21 Q. Do you think it was before 2010?
22 A. No.
23 Q. 2011?
24 A. I don't remember.

1 Q. Okay. I'd like to draw your attention
2 to Exhibit 31. Do you have it in front of you?
3 A. Yes, ma'am.
4 Q. Good. Okay.
5 Do you recognize this exhibit?
6 A. Yes.
7 Q. And do you dispute that this is your
8 information and your signature on the second page?
9 A. No.
10 Q. And on the first page, about midway
11 through the page, it says: Notices concerning
12 this application should be sent to, and I believe
13 it has your information and lists you as trustee,
14 Landing Property Owners Association; is that
15 correct?
16 A. Correct.
17 Q. And we've been talking about an unnamed
18 homeowners association that you don't recall the
19 name of it. Is it possible that this was that
20 homeowners association?
21 A. Yes. Yes.
22 Q. And you filed this document?
23 A. Yes.
24 Q. And this was in 2011, according to the

Page 82 1 timestamp? 2 A. Yes. 3 Q. And I believe we talked about this 4 briefly, or you did with Brett, but the parcel 5 numbers under Section 1, 66-09675162 and 6 66-09675163, those are the areas of The Landings 7 Phase VII and VIII which contain the dam and the 8 common space of land? 9 MR. CHAPPELEAR: Objection. 10 Go ahead. 11 A. I don't think it has dam. It's lake. 12 Q. The lake. Let's go back to the lake a 13 little bit. 14 Was the lake ever categorized as a 15 retention pond? 16 MR. CHAPPELEAR: Objection. 17 Q. If you know. 18 A. I don't know. 19 Q. Okay. Was it always referred to as a 20 lake when you lived there? 21 A. Yes. 22 Q. Okay. But you don't dispute that these 23 parcel numbers show that lake that is part of 24 Phase VII and VIII?	Page 84 1 A. Oh, yeah. Okay. Okay. 2 Q. Could you confirm that that matches one 3 of the parcel numbers on Exhibit 31? 4 A. Yes. 5 Q. And about midway down the page, do you 6 see the owner on Exhibit C-1? 7 A. It says owner's address, yes. 8 Q. And what is the name of the owner 9 there? 10 A. Landing Property Owners Association. 11 MR. CHAPPELEAR: The. 12 A. The. 13 ----- 14 Thereupon, Defendants' Exhibit C-2 is 15 marked for purposes of identification. 16 ----- 17 Q. Mr. Yough, I'm going to hand you 18 Exhibit C-2. It's very similar to C-1. 19 A. Thank you. 20 Q. If you would hand a copy to your 21 attorney. 22 And then I have the same question here. 23 If you would look at the parcel number on C-2 and 24 confirm that it is the same as one of the parcel
Page 83 1 A. No, I do not dispute this. No. 2 Q. Okay. And that's the lake and the 3 watershed we're talking about in this litigation, 4 generally? 5 A. Correct. 6 MS. AMADOR: Okay. 7 I have insufficient copies, so I'm 8 apologizing in advance. 9 Q. I'm going to hand you what is marked as 10 Exhibit C-1, and this is a printout from the Knox 11 County Recorder. 12 ----- 13 Thereupon, Defendants' Exhibit C-1 is 14 marked for purposes of identification. 15 ----- 16 Q. So this is a summary of Parcel 17 No. 66-09675.162, which is one of the pieces of 18 property listed in your application for real 19 property tax. Would you please look at Exhibit 31 20 and C-1 and confirm that it is one of the parcel 21 numbers listed. 22 A. C-1, Exhibit 1 -- what did you want me 23 to do? 24 Q. See the parcel number at the top?	Page 85 1 numbers in Exhibit 31. 2 A. Correct. 3 Q. And do you see the owner for 4 Exhibit C-2? 5 A. Yes. 6 Q. And who is that? 7 A. Landing Property Owners Association, 8 The. 9 MR. CHAPPELEAR: Kelly, you mentioned 10 that C-1 and C-2 were from the Knox County 11 Recorder's Office. Do you think these are from 12 the auditor's office? 13 MS. AMADOR: Yes, likely. 14 MR. CHAPPELEAR: Thank you. 15 MS. AMADOR: They're from Knox County. 16 Q. Looking back at Exhibit 31, when you 17 filed this application for real property tax, did 18 you file it under the belief that The Landings 19 Property Owners Association was owner of these 20 parcels? 21 A. Yes. 22 Q. Do you know who maintained the property 23 in these parcels? 24 A. I'm sorry?

Page 86 1 Q. Do you know who maintained the property 2 in these parcels, the lake and the common area? 3 A. Yes and no. 4 Q. Can you explain? 5 A. You might want to rephrase your 6 question. 7 Q. Do you know who maintained the property 8 in these parcels that are listed in C-1 and C-2? 9 A. Well, there's two pieces of property, 10 and one of them is maintained, and the other one 11 isn't. 12 Q. Which of these is maintained? 13 A. Huh? 14 Q. Which of the pieces of property is 15 maintained? 16 A. I don't know what they refer to. 17 Q. How about we refer to one of them as 18 the lake. What about the lake? 19 A. The lake is the one that's not 20 maintained. 21 Q. Why isn't it maintained, if you know? 22 A. I do not know. 23 Q. Did anyone ever maintain the lake? 24 A. I do not know.	Page 88 1 A. No. 2 Q. How did you start? 3 A. Just as a member. 4 Q. When did you become a trustee? 5 A. I do not recall that specifically. 6 Q. So you believe that in 2007 you were a 7 member of The Landings Property Owners 8 Association? 9 A. Would you rephrase it -- rephrase it 10 again? 11 Q. Yes. When you purchased your property 12 in 2007, you believe you started as a member of 13 The Landings Property Owners Association? 14 A. I don't know. 15 Q. Do you believe that you were a trustee 16 when you filed Exhibit 31? 17 A. Yes. 18 Q. And do you believe that being a trustee 19 was a position of authority? 20 A. Yes. 21 Q. Was it similar to being a board member? 22 A. Yes. 23 Q. Okay. Now I'd like to talk about the 24 other homeowners association in Exhibit 15. And
Page 87 1 Q. And the second piece of property, it is 2 maintained? 3 A. It is mowed. 4 Q. Who mows it? 5 A. Well, the current HOA, Phase VII and 6 VIII, whatever that name is. 7 Q. And who maintained it before then? 8 A. This one (indicating), Landing Property 9 Owners Association. 10 Q. So you believe that The Landings 11 Property -- The Landings Property Owners 12 Association maintained C-2, that piece of 13 property, not the lake, the other piece of common 14 area, before The Landings Phase VII and VIII 15 Property Owners Association? 16 A. Yes. 17 Q. Okay. Do you know how long you were 18 involved with The Landings Property Owners 19 Association? 20 A. How long I was? 21 Q. Yes. 22 A. Probably since '07. 23 Q. And have you always served as a 24 trustee?	Page 89 1 Exhibit 15, again, is the articles of 2 incorporation for The Landings Development Phase 3 VII and VIII Property Owners Association, Inc. 4 Do you see the date of filing on this? 5 It should be on the top right -- or left. 6 A. Is that 8-30-12? 7 Q. Yes. 8 A. I see that. 9 Q. Do you believe that's an accurate date 10 of when this entity was formed? 11 A. I do not know. I don't know what's 12 accurate and what isn't anymore. 13 Q. And you've seen this document before, 14 right? 15 A. No, I have never seen that document 16 before. 17 Q. Exhibit 15 you haven't seen? 18 A. I don't believe I've seen that document 19 before, that first page. I don't think I've seen 20 the second page. 21 Q. Okay. On page 3 of 3, which is the 22 further page -- 23 A. Yeah, I signed something, but I don't 24 remember seeing that.

1 Q. -- do you dispute that that's your
2 signature?
3 A. Do what now?
4 Q. Is this your signature on page --
5 A. Yes, that's my signature.
6 Q. Okay. Were you also a trustee of this
7 organization, The Landings Development Phase VII
8 and VIII Property Owners Association, Inc.?
9 A. I think it's recorded here somewhere.
10 One year, maybe, wherever those -- whatever that
11 exhibit was.
12 Q. I will point to page 4 of Exhibit 15.
13 Under your signature, it does say Cloyd Yough,
14 trustee. Do you agree?
15 A. Yeah, I see that.
16 Q. And you believe that you were trustee
17 for approximately a year in this position?
18 A. I think I was a trustee longer than one
19 year. I was president one year.
20 Q. Okay. How long were you a trustee?
21 A. I -- I think three.
22 Q. So is it possible that you served as a
23 trustee from 2012 to 2015?
24 A. You say possible? Yes.

1 Q. Do you believe that you served as a
2 trustee from 2012 to 2015?
3 A. I couldn't state specifically.
4 Q. Okay. Do you dispute this homeowners
5 association, the Landing Development Phase VII and
6 VIII Property Owners Association, Inc., was formed
7 on August 30th, 2012?
8 A. Yes.
9 Q. You do dispute it or you don't?
10 A. I don't dispute that.
11 Q. Okay. Do you know what year the State
12 declared the dam in the common area a Class 1 dam?
13 MR. CHAPPELEAR: Objection to the
14 phrase "common area."
15 Q. Do you know what -- I'll rephrase.
16 Do you know what year the State
17 declared the lake and -- in the common area of
18 Phase VII or VIII, or the lake affiliated with
19 Phase VII and VIII of The Landings, to be a
20 Class 1 dam?
21 MR. CHAPPELEAR: Same objection. And
22 there were several references to lake and dam, but
23 the State's only action was as to a dam.
24 Q. Do you know what year the State --

1 A. Not specifically.
2 MR. CHAPPELEAR: Wait for her to ask
3 the question, please.
4 THE WITNESS: Oh. Sorry. Okay.
5 Q. Do you know what year the State
6 classified the dam that we are here in this
7 litigation for as a Class 1 dam?
8 A. No.
9 Q. Does 2009 sound familiar?
10 A. Well, it's probably in these documents
11 somewhere.
12 Q. You don't dispute that the documents
13 we've seen today are accurate as to the dates?
14 MR. CHAPPELEAR: Objection.
15 Q. Have you seen a date on any of the
16 exhibits entered today that you disagree with?
17 MR. CHAPPELEAR: Objection.
18 MS. AMADOR: What's your objection,
19 Steve?
20 MR. CHAPPELEAR: You're asking about
21 some 33 documents, some of which are lengthy and
22 which have many, many dates, and you're asking him
23 an extremely broad question as to whether he
24 disagrees with any date in any of these documents.

1 That's ambiguous, vague and overbroad. That's my
2 objection.
3 MS. AMADOR: Well, I'll point that the
4 rules allow anything within the scope of the
5 claims at bar, and ambiguity is no longer a
6 speaking objection; however, I will narrow my
7 question for you.
8 MR. CHAPPELEAR: Thank you.
9 Q. Many of the questions today have
10 focused on dates of when letters were received,
11 and these dates were brought to your attention.
12 Do you disagree with any of the dates that were
13 brought to your attention as being inaccurate?
14 MR. CHAPPELEAR: Same objection.
15 Q. Go ahead.
16 A. Same objection.
17 Q. So you do disagree with a date that was
18 brought to your attention today?
19 A. I cannot state yes or no.
20 Q. Okay. The Landings Development Phase
21 VII and VIII Property Owners Association -- I
22 think you just testified you don't agree it was
23 formed in 2012.
24 MR. CHAPPELEAR: Is that a question?

1 MS. AMADOR: Yes.
 2 MR. CHAPPELEAR: It's been asked and
 3 answered.
 4 But go ahead.
 5 A. You're saying what? That I was a
 6 member of it in 2012?
 7 MR. CHAPPELEAR: No. She's just asking
 8 about whether you dispute that it was formed in
 9 2012.
 10 A. Oh. I'm a little bit confused on all
 11 these dates, and I cannot answer it truthfully one
 12 way or the other, I guess.
 13 Q. You just testified, if I may, that the
 14 file date for the articles of incorporation on
 15 Exhibit 15 is 8-30-2012; is that right?
 16 A. Yes.
 17 Q. So based on that date and your
 18 former -- the testimony that the State declared
 19 the dam a Class 1 dam in 2009, was this homeowners
 20 association formed after the dam was classified as
 21 a Class 1 dam?
 22 A. Yes.
 23 Q. Okay. Let's turn back to Exhibit 31.
 24 This has a file date of October 26th, 2011.

1 Property Owners Association?
 2 Do you disagree that you were a trustee
 3 of The Landings Property Owners Association?
 4 A. I can't remember.
 5 Q. Do you dispute it?
 6 A. Can't dispute it, can't --
 7 Q. Okay.
 8 A. Can't authorize it either.
 9 Q. We'll look at Exhibits 31 and 28 and
 10 25.
 11 A. 31 -- 28, did you say?
 12 Q. Yep. Do you have 28 and 25 in front of
 13 you?
 14 A. Yep -- well, 25 too?
 15 Q. Yes, please.
 16 A. Got it.
 17 Q. Okay. 25 and 28 appear to be letters
 18 from the Ohio Department of Natural Resources, and
 19 you are listed as a care of recipient for The
 20 Landings Property Owners Association, Inc.; is
 21 that correct?
 22 A. That's what it states there.
 23 Q. When you received these letters, did
 24 you dispute that you were affiliated with The

1 A. Yes.
 2 Q. Looking at Exhibit 31 and Exhibit 15,
 3 you filed this document, Exhibit 31 -- I'll let
 4 you get situated.
 5 MR. CHAPPELEAR: This one right here.
 6 THE WITNESS: Oh, okay.
 7 MR. CHAPPELEAR: Yeah.
 8 Q. Do you have 31 in front of you?
 9 A. Yeah.
 10 Q. Excellent.
 11 A. Got it.
 12 Q. You filed this document on
 13 October 26th, 2011, correct?
 14 A. Yes.
 15 Q. And that would have been a little less
 16 than a year before The Landings Development Phase
 17 VII and VIII Property Owners Association, Inc.,
 18 was filed -- was formed?
 19 A. Correct.
 20 Q. Can we turn to Exhibit 21, please.
 21 On page -- the third page of this
 22 document, ODNR_001087, the top of the page, it
 23 says: Received a phone call from Cloyd Yough --
 24 do you see it -- a trustee of The Landings

1 Landings Property Owners Association, Inc.?
 2 MR. CHAPPELEAR: Objection. It hasn't
 3 been stated that he did receive these letters.
 4 Q. Do you dispute receiving these letters?
 5 A. I think I did, yes.
 6 Q. So when you received them, do you --
 7 did you object to the fact that you were
 8 affiliated with The Landings Property Owners
 9 Association, Inc.?
 10 A. No.
 11 Q. And is that possibly because you were
 12 serving as a trustee of The Landings Property
 13 Owners Association, Inc.?
 14 A. No.
 15 Q. You don't believe you were serving as a
 16 trustee of The Landings Property Owners
 17 Association, Inc.?
 18 A. No.
 19 Q. So let's turn back to 31 where I
 20 believe you just testified that you had filed this
 21 application for real property tax as a trustee of
 22 The Landings Property Owners Association.
 23 A. Correct.
 24 Q. So I guess explain where I'm losing

1 it -- where you're losing me.
2 In 2011, you filed this application for
3 exception.
4 A. They're different names.
5 Q. Are they different names?
6 A. Yes, they are.
7 Q. I guess we'll have to agree to disagree
8 on that one. Are you --
9 MR. CHAPPELEAR: Do you have a
10 question?
11 MS. AMADOR: Excuse me, Steve?
12 MR. CHAPPELEAR: Do you have a question
13 rather than a comment?
14 MS. AMADOR: Do you?
15 MR. CHAPPELEAR: Yes. I'm objecting to
16 your making comments rather than asking questions.
17 MS. AMADOR: I'm going through my
18 questions as I see fit, Steve.
19 MR. CHAPPELEAR: Saying I guess we have
20 to agree to disagree is not a question.
21 MS. AMADOR: I was unaware I'm not
22 allowed to make comments on the record, Steve.
23 MR. CHAPPELEAR: You're not. Please
24 proceed with a question.

1 Q. Mr. Yough, are you aware that one of
2 the claims the Long Defendants has made against
3 Mullins Bros., is that The Landings Property
4 Owners Association -- the homeowners association
5 that owns this common area is a shell corporation?
6 MR. CHAPPELEAR: If you know.
7 A. No.
8 Q. And knowing that you filed the tax
9 exemption form as a trustee of The Landings
10 Property Owners Association in 2011, does it
11 appear to you that The Landings Property Owners
12 Association was functional in 2011?
13 A. Yes.
14 Q. And you have no reason to dispute that
15 it was a functional homeowners association?
16 A. No.
17 MS. AMADOR: I believe that's all from
18 me for now unless Steve has further comment.
19 MR. CHAPPELEAR: Rob, what -- you've
20 got some questions?
21 MR. BROEREN: I have a few questions.
22 MR. CHAPPELEAR: That's great, but I'm
23 just wondering how long because we're now at
24 12:35, and I'm wondering what we'll do about

1 lunch.
2 MR. BROEREN: We have about 10 minutes,
3 maybe 15.
4 MR. CHAPPELEAR: Okay.
5 How about you?
6 MR. KRAVITZ: I don't have anything
7 new, I don't think, unless something comes up
8 after...
9 MR. CHAPPELEAR: All right. How are
10 you for going for another 10 or 15 minutes?
11 THE WITNESS: Yeah, that's fine.
12 MR. CHAPPELEAR: Okay.
13 You?
14 THE REPORTER: I'm okay. Thank you.
15 -----
16 CROSS-EXAMINATION
17 BY MR. BROEREN:
18 Q. Mr. Yough, my name is Rob Broeren. I'm
19 the law director for the City of Mount Vernon, and
20 I just have a few questions to ask.
21 You and your wife were the original
22 purchasers of 50 Wildwood Lane; is that correct?
23 A. No.
24 Q. No? Who purchased it originally?

1 A. I don't know.
2 Q. When you acquired it, it was acquired
3 in you and your wife's name, correct?
4 A. Correct.
5 Q. Okay. And you did that in 2006, and
6 then moved in in 2007; is that correct?
7 A. That's correct.
8 Q. Who was -- who is the agent who worked
9 on that with you?
10 A. Who is the what?
11 Q. There's a closing company that works on
12 all of these closing documents.
13 A. I do not know.
14 Q. You do not know. Do you recall
15 speaking with anyone about the closing?
16 A. Do I recall speaking to anybody about a
17 closing?
18 Q. Do you recall speaking with anyone at
19 the closing?
20 A. Two people.
21 Q. Who is that?
22 A. Brian Kight and Bob Rauzi.
23 Q. And you know Mr. Rauzi is an attorney
24 in town -- or was an attorney?

1 A. He was an attorney. He was a neighbor.
2 Q. And he had a closing company. Were you
3 aware of that?
4 A. No.
5 Q. Okay. But you don't know who --
6 sitting here today, you don't remember who the
7 closing company was?
8 A. Correct.
9 Q. Did you keep any of those documents
10 from your closing?
11 A. I don't have -- I don't believe I have,
12 no. I don't remember.
13 Q. You don't remember or you don't know?
14 A. I don't know.
15 Q. Okay. If you had them, where would
16 they be?
17 A. I don't know.
18 Q. Okay. Do you recall -- so you --
19 actually, let me ask a better question here. Do
20 you recall anything about the closing, any
21 specific fees that you were required to pay?
22 A. No.
23 Q. Okay. And after you moved in, an
24 entity that you're not sure of did collect fees,

1 Q. And are they part of the documents that
2 were turned over to your attorneys in this case?
3 A. I don't recall.
4 Q. Okay. Those statements were part of
5 the documents of the -- whatever entities sent
6 them out, correct?
7 A. Correct.
8 Q. Who would have kept the originals of
9 those documents?
10 A. I really don't know.
11 Q. Okay. You said that you were both a
12 trustee and president of both -- you were a
13 trustee of The Landings Property Owners
14 Association and that you were trustee and
15 president of the Phase VII and VIII HOA; is that
16 correct?
17 A. I didn't say that.
18 Q. Okay. Well, what, then, did you say?
19 A. I think I was only president of the
20 first one you mentioned.
21 Q. Okay. You had said you -- as either
22 president or trustee of either of those
23 organizations, did you ever sign checks?
24 A. No.

1 correct?
2 A. Yes.
3 Q. And they have been for several years?
4 A. You'll have to clarify "several."
5 Q. More than 1, less than 10.
6 A. Yes.
7 Q. Okay. And the entity that collected
8 fees, were you associated with that at some point
9 as a trustee?
10 A. Yes.
11 Q. Who made the decision to stop
12 collecting fees?
13 A. I don't recall.
14 Q. Do you recall if it was a vote of all
15 the homeowners or if it was done by the trustees
16 or, slash, board of directors?
17 A. I don't recall.
18 Q. Okay. You said previously that the
19 monies that were spent -- that they went out in
20 a -- I want to make sure I get the word you
21 used -- statements, correct?
22 A. Yes, sir.
23 Q. And did you receive those statements?
24 A. Yes.

1 Q. No. Okay.
2 And you don't recall who signed the
3 checks?
4 A. I do not know who did that.
5 Q. Do you recall if either of the
6 organizations you were affiliated with retained
7 the services of a CPA or an accounting firm?
8 A. Yes.
9 Q. And what accounting firm would that be?
10 A. I don't know the name.
11 Q. Do you remember any of the people who
12 might have been associated with it?
13 A. I'm sure Chetan Patel could tell you
14 who the -- or who the CPA was.
15 Q. And is Chetan Patel still living in The
16 Landings Property Owner --
17 A. Yes, she is.
18 Q. And is -- Chetan Patel was treasurer at
19 some point?
20 A. Yes.
21 Q. Would Chetan Patel potentially have
22 copies of the statements that were sent out?
23 A. I do not know.
24 Q. So at various times, you've had

1 meetings with either other trustees or other
2 people to make decisions; is that correct?
3 A. Yes.
4 Q. Taking a look at previously marked
5 Exhibit 31, you signed this?
6 A. Yes.
7 Q. And you signed this as trustee of The
8 Landing Property Owners Association, correct?
9 A. Correct.
10 Q. Did you meet with anyone in regards to
11 filing this before it was filed? Did you discuss
12 filing this with anyone?
13 A. I don't remember, Rob.
14 Q. Okay. Do you recall if you ever
15 discussed any of this with any attorneys prior to
16 filing it?
17 A. Yes.
18 Q. And who would those attorneys have
19 been?
20 A. I did not discuss it with an attorney.
21 Q. Okay. Did you discuss it with any law
22 firms?
23 A. Nope.
24 Q. No. Did you receive -- did the Landing

1 you need information from both of those two
2 entities, correct?
3 A. I do not know.
4 Q. Okay. The second page requires a
5 county auditor signature. Did you retain a copy
6 of this document?
7 A. Did I what?
8 Q. Did you keep a copy of this document
9 after you filed it?
10 A. This one here?
11 Q. Yeah.
12 A. I think I did have a copy of that.
13 Q. And would that have been provided to
14 your attorneys?
15 A. When?
16 Q. You said that you turned over all the
17 documents you had relating to the cattle dam to
18 your --
19 A. This was --
20 MR. CHAPPELEAR: Wait, wait. Please
21 let him finish his question. All right?
22 Q. You previously testified that you
23 turned over the documents related to the cattle
24 dam to your attorneys; is that correct?

1 Property Owners Association have an attorney?
2 A. At that time, no.
3 Q. You said that you filed this document
4 so that you wouldn't have to pay property taxes on
5 these two listed parcels of property, correct?
6 A. Correct.
7 Q. How did you decide to do that?
8 A. You get a bill, and you say, why? So I
9 questioned it.
10 Q. Do you know how -- okay. So you had to
11 file this, and you had to take it to both the
12 county auditor and the county treasurer; is that
13 correct?
14 A. I don't remember who I took it to.
15 Q. But you did file it?
16 A. I filed it, yes.
17 Q. And the form requires both -- both
18 information from the county auditor and the county
19 treasurer; is that correct?
20 A. I do not know that.
21 Q. It says on the first page: Before the
22 county auditor's finding on page 3 and treasurer
23 certificate, page 4.
24 So that would lead one to believe that

1 MR. CHAPPELEAR: That is not correct.
2 That misstates the evidence.
3 Q. Okay. Can you please tell me what
4 documents you have turned over to your attorneys,
5 then, since I clearly didn't get it the first
6 time?
7 A. I think -- no, I can't -- I don't
8 remember all the documents.
9 Q. Was this one of the documents that you
10 turned over to the attorneys?
11 A. Yes.
12 Q. Okay.
13 MR. CHAPPELEAR: I'm going to -- excuse
14 me just one second. I'm going to object because I
15 just see that Exhibit 31, what is on the back of
16 the first page says page 3, and I don't see
17 page 2.
18 MR. BROEREN: Or page 4.
19 MR. CHAPPELEAR: Or page 4. And so I'm
20 just noting that for the record.
21 MR. BROEREN: Yeah.
22 MR. CHAPPELEAR: Thank you.
23 MR. BROEREN: I would agree that the
24 document we have here is incomplete, and we are

1 going to request a copy of the document that
 2 Mr. Yough had that he provided to you.
 3 MR. CHAPPELEAR: I will tell you that I
 4 do not recall ever seeing this document before. I
 5 think Mr. Yough is mistaken.
 6 MR. BROEREN: Okay.
 7 Q. Well -- so let's see. You said at the
 8 time that you filed this that you did not have
 9 legal representation for The Landings Property
 10 Owners Association; is that correct?
 11 A. Correct.
 12 Q. Did you subsequently get legal
 13 representation? After this date, did you get a
 14 lawyer?
 15 A. After that date, yes.
 16 Q. Yeah. And who was that lawyer?
 17 A. Kim Rose.
 18 Q. And about when -- about how long after
 19 2011 did you retain Mr. Rose and his firm?
 20 A. I cannot answer that correctly. I
 21 don't remember.
 22 Q. Okay. During the time that you were a
 23 trustee with either the HOA for Phase VII and VIII
 24 and The Landings Property Owners Association, did

1 available; is that correct?
 2 A. That's correct.
 3 Q. Would it have been possible for either
 4 of these entities to raise funds? Did they have
 5 the authority to assess money to the various
 6 properties?
 7 A. I do not know that.
 8 Q. Okay. Would it surprise you that those
 9 powers were in the various incorporation
 10 documents?
 11 A. I guess.
 12 Q. Okay. One moment.
 13 So I know that you didn't recall where
 14 you spent money when you were a trustee or
 15 president of the various organizations, correct?
 16 You don't recall specific dollar amounts?
 17 A. Right.
 18 Q. Do you recall entering any contracts as
 19 either a trustee or president for those
 20 associations?
 21 A. No.
 22 Q. Okay. So you did say that they took
 23 care of -- there's a -- .162 and .163 are the two
 24 sort of common areas -- or common pieces of

1 either of the entities ever transfer or sell real
 2 estate in its possession?
 3 A. No.
 4 Q. Okay. And you don't know where -- how
 5 much money was in the account of the...
 6 A. I don't know that as a fact.
 7 Q. What do you mean exactly by "as a
 8 fact"?
 9 A. I don't know the exact amount.
 10 Q. Okay. Do you have a reasonable guess
 11 as to what you think was in the accounts?
 12 A. Yes.
 13 Q. And what would that be?
 14 A. \$40,000.
 15 Q. That's a pretty specific number. How
 16 did you come to that number?
 17 A. I think it's on a statement.
 18 Q. A statement. And you saw that
 19 statement?
 20 A. Evidently.
 21 Q. At times you've said that you didn't --
 22 that the various groups did not engage the
 23 services of a professional engineer to work on
 24 this because there weren't sufficient funds

1 property owned by The Landing Property Owners
 2 Association.
 3 MR. CHAPPELEAR: Objection.
 4 Q. Landing Property Owners Association
 5 says 66-09675.162 and 66-09675.163, correct?
 6 MR. CHAPPELEAR: Objection.
 7 MR. BROEREN: I'm not sure what --
 8 MR. CHAPPELEAR: My objection is that
 9 you specifically referred to these being common
 10 areas.
 11 MR. BROEREN: Oh. Okay.
 12 MR. CHAPPELEAR: And I don't believe
 13 that's accurate.
 14 Q. I meant -- I would agree that I don't
 15 mean to call them areas. I mean to call them --
 16 these are properties owned by this group; is that
 17 correct?
 18 MR. CHAPPELEAR: Objection. That
 19 misstates the evidence.
 20 Q. So these are properties that you signed
 21 for -- well, let's just -- so one of these two
 22 properties, you said, was kept up by the HOA?
 23 A. Correct.
 24 Q. And that was done -- how did they keep

1 it up?
2 A. Sorry. I didn't catch it.
3 Q. How did they keep it up?
4 A. Mow.
5 Q. Mow. And who mowed it?
6 A. I don't recall.
7 Q. Do you recall if the HOA contracted
8 with someone to mow it?
9 A. Yes.
10 Q. So they had a contract for mowing?
11 A. I guess I'd have to ask what you mean
12 by contract.
13 Q. Contract is an agreement between two
14 people to do something.
15 A. But not a written document?
16 Q. I didn't specify it was a written
17 document.
18 A. Okay. Correct.
19 Q. I said contracts -- only certain types
20 of contracts are required to be in writing. So
21 there was a contract for mowing?
22 A. Yes.
23 Q. Are there any other oral contracts of
24 which you're aware?

1 MR. BROEREN: What's it called?
2 MR. BALL: Principal spillway.
3 Principal outlet.
4 Q. Principal outlet because the spillway
5 is the emergency spillway. The principal outlet
6 in the center of the lake -- you're aware that
7 there's a big pipe in the center of the lake?
8 A. Yes.
9 Q. And several -- at least one time, there
10 was damage done to it and it had to be repaired.
11 Do you remember that?
12 A. Yes.
13 Q. Okay. And do you know who did the
14 work?
15 A. No.
16 Q. And do you know how that work was paid
17 for?
18 A. No.
19 MR. BROEREN: Okay.
20 All right. That's all I have. Thank
21 you very much, Mr. Yough.
22 MR. CHAPPELEAR: Anything more?
23 MR. KRAVITZ: No.
24 MR. CHAPPELEAR: Here?

1 A. None that I know of.
2 Q. Okay. And, previously, when I said
3 contract, you were thinking specifically written
4 agreements?
5 A. Not necessarily.
6 Q. Okay. So you said that they only
7 worked on the -- cutting the grass. Are you aware
8 if they ever treated for weeds in the lake?
9 A. Did they what now?
10 Q. Treat for weeds in the lake.
11 A. The lake has been treated, but not
12 necessarily by that association.
13 Q. So someone -- it just happened? Who
14 treated it for weeds?
15 A. I don't know what the company was that
16 treated it for -- for algae or weeds or whatever.
17 Q. Do you know who arranged for it to be
18 done?
19 A. Nope, do not know that.
20 Q. Are you aware if there's ever been work
21 done on the outflow pipe in the lake?
22 A. The what now?
23 Q. There's a -- in the middle of the lake,
24 there's --

1 MS. AMADOR: (Indicates negatively.)
2 MR. CHAPPELEAR: All done. He'll read.
3 (Signature not waived.)
4 -----
5 Thereupon, the foregoing proceedings
6 concluded at 12:57 p.m.
7 -----
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Witness Errata and Signature Sheet		
Correction or Change Reason Code		
1-Misspelling 2-Word Omitted 3-Wrong Word		
4-Clarification 5-Other (Please explain)		
Page/Line	Correction or Change	Reason Code

[illegible]

I, Cloyd A. Yough, have read the entire transcript of my deposition taken in this matter, or the same has been read to me. I request that the changes noted on my errata sheet(s) be entered into the record for the reasons indicated.

Date _____ Signature _____

Ref: SW309693CY

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